

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Scott Carlton	Team: Squad #16	CCRB Case #: 201802108	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 01/25/2018 4:00 AM, Wednesday, 01/31/2018 12:00 AM	Location of Incident: Staten Island Ferry; 4 Whitehall Street	18 Mo. SOL 7/25/2019	Precinct: 01
Date/Time CV Reported Tue, 02/27/2018 4:01 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 02/27/2018 4:01 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			PBSI
2. Officers			PBSI
3. POM Scott Giugliano	08110	949033	001 PCT
4. POM Oswaldo Santiago	08022	939421	001 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Bilbao	05385	934493	PBSI

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: On the Staten Island Ferry, an officer spoke discourteously to § 87(2)(b)	A . Officer(s) Unidentified
B . Officers	Abuse: On the Staten Island Ferry, officers refused to provide their names or shield numbers to § 87(2)(b)	B . Officer(s) Unidentified
C . Officers	Force: On the Staten Island Ferry, officers used physical force against § 87(2)(b)	C . Officer(s) Unidentified
D . An officer	Force: On the Staten Island Ferry, an officer used a chokehold against § 87(2)(b)	D . Officer(s) Unidentified
E . An officer	Force: On the Staten Island Ferry, an officer restricted § 87(2)(b)'s breathing	E . Officer(s) Unidentified
F . POM Oswaldo Santiago	Abuse: At 4 Whitehall Street in Mahattan, Police Officer Oswaldo Santiago threatened to arrest § 87(2)(b)	F . Unsubstantiated
G . POM Scott Giugliano	Abuse: At 4 Whitehall Street in Manhattan, Police Officer Scott Giugliano threatened to arrest § 87(2)(b)	G . Unsubstantiated
H . POM Oswaldo Santiago	Abuse: At 4 Whitehall Street in Manhattan, Police Officer Oswaldo Santiago forcibly removed § 87(2)(b) to the hospital	H . Unsubstantiated
I . POM Scott Giugliano	Abuse: At 4 Whitehall Street in Manhattan, Police Officer Scott Giugliano forcibly removed § 87(2)(b) to the hospital.	I . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On February 27, 2018, § 87(2)(b) reported the following complaint to the CCRB in person (Board Review 01).

§ 87(2)(b) reported that, on January 31, 2018 at approximately 4:00 a.m., he told the ferry staff to stop following him as he boarded the Staten Island Ferry at Whitehall Terminal at 4 Whitehall Street in Manhattan. The investigation determined that the incident actually occurred on January 25, 2018. Two police officers who stood on the ferry heard what § 87(2)(b) had said. One of the officers said to § 87(2)(b) “Fuck you. What are you going to do? Write a report?” (**Allegation A: Discourtesy, officer unidentified**). The officers told § 87(2)(b) to get off the boat. § 87(2)(b) asked for the names and badges of both officers, but they covered their badges with one hand and did not provide the requested information verbally (**Allegation B: Abuse of Authority, officers unidentified**). The officers, positioned behind § 87(2)(b) physically forced him off of the ferry by twisting, grabbing, pushing, and pulling him, forcing him to the ground multiple times (**Allegation C: Force, officers unidentified**). One of the officers placed § 87(2)(b) in a chokehold (**Allegation D, Force, officer unidentified; Allegation E, Force, officer unidentified**). § 87(2)(b) turned his head back multiple times in order to attempt to obtain the shield numbers of the officers, but on one or two occasions the officers covered their names and shields with their hands (**Allegation B, continued**). The ferry, which had left the dock and reversed directions in order to remove § 87(2)(b) from the boat, docked at Whitehall Terminal. The officers pushed § 87(2)(b) off the ferry onto the ramp (**Allegation C, continued**).

§ 87(2)(b) walked to the Bowling Green subway station at Broadway and Battery Place in Manhattan for a half hour before he returned to Whitehall Terminal to attempt to obtain the names of the two officers who had forced him off the boat.

Inside the ferry terminal, § 87(2)(b) was assaulted by ferry staff and the Coast Guard. Police Officers Oswaldo Santiago and Scott Giugliano were stationed inside the terminal. Both officers told § 87(2)(b) repeatedly that he could choose between jail or the hospital (**Allegation F: Abuse of Authority, unsubstantiated; Allegation G: Abuse of Authority, unsubstantiated**). Police Officer Santiago and Police Officer Giugliano removed § 87(2)(b) to the hospital against his will (**Allegation H: Abuse of Authority, unsubstantiated; Allegation I: Abuse of Authority, unsubstantiated**).

§ 87(2)(b) remained at the hospital until approximately 8:30 a.m., at which time he returned to the ferry terminal and boarded a ferry without incident.

§ 87(4-b), § 87(2)(g)

No video evidence was available in regard to this incident.

Findings and Recommendations

Allegation (A) Discourtesy: On the Staten Island Ferry, an officer spoke discourteously to

§ 87(2)(b)

Allegation (B) Abuse of Authority: On the Staten Island Ferry, officers refused to provide their names or shield numbers to

§ 87(2)(b)

Allegation (C) Force: On the Staten Island Ferry, officers used physical force against

§ 87(2)(b)

Allegation (D) Force: On the Staten Island Ferry, an officer used a chokehold against

§ 87(2)(b)

Allegation (E) Force: On the Staten Island Ferry, an officer restricted § 87(2)(b) **s breathing.**

§ 87(2)(b) alleged in his verified statement that two officers stood on the boat to the side of where he boarded (Board Review 01). One of the officers was male, white, young, 5'10" in height, approximately 164 pounds, in uniform, with a slim build, very short dark hair which was either brown or black, and no facial hair. § 87(2)(b) believed his name might have been "Munnicio" or a similar name based upon a glimpse of his badge. The other officer was also male, white, and in uniform, but 55 to 65 years old, 5'6" in height, approximately 155 pounds, with a small build, a pot belly, and hunched stance. He had grey hair and possibly a white mustache.

§ 87(2)(b) alleged that, on January 31, 2018, as he boarded the Staten Island Ferry at Slip 4, he asked that the ferry staff stop following him (Board Review 01 and 02). In response, the younger officer said to § 87(2)(b) as he walked past, "Fuck you. What are you going to do? Write a report?" (Board Review 01). § 87(2)(b) ignored the comment and walked to the lower level of the boat, where both officers followed him. From behind, the officers grabbed § 87(2)(b) s shoulder, arm, and the back of his coat in order to turn him around to face them. The officers told § 87(2)(b) to get off the boat, which had left the dock but had been turned around in order to return to Whitehall Terminal in Manhattan. § 87(2)(b) said to the officers, "I need the name and badge number for both you guys." The officers did not respond, and both covered their badges with one hand as they began to physically force § 87(2)(b) toward the ferry exit. The officers twisted § 87(2)(b) around so that they were positioned behind him. One officer twisted § 87(2)(b) s right arm behind him, while the other officer twisted his left arm upward. The younger officer reached his arm around § 87(2)(b) s neck from behind so that his elbow was positioned at the front of § 87(2)(b) s neck. The officer held the arm in this position for a brief duration such that § 87(2)(b) stopped breathing for one second. Both officers simultaneously and repeatedly grabbed, pushed, and pulled at § 87(2)(b) in order to keep him in movement toward the ferry's exit. Both officers forced § 87(2)(b) to the ground two to three times; each officer twisted one of § 87(2)(b) s arms behind his back and pushed him forward and down until he hit the ground. § 87(2)(b) attempted to turn his head back over his shoulder four times to obtain the officers' names and badge numbers. Both officers covered with badges with a hand on one to two occasions. § 87(2)(b) believed that some of the officers' physical maneuvers were meant to keep him from seeing their badge numbers. The

officers successfully forced § 87(2)(b) to the boat exit, where, once docked, they pushed him off the ferry.

In their statements at the CCRB, both Police Officer Giugliano and Police Officer Santiago stated that the Staten Island Ferries are patrolled by officers from the 120th Precinct or the Staten Island Patrol Borough (Board Review 03 and 04). Officers from the 1st Precinct, including Police Officer Giugliano and Police Officer Santiago, do not ride the ferries.

Both AIDED § 87(2)(b), corresponding Event # § 87(2)(b) and § 87(2)(b) medical records show that the incident occurred on § 87(2)(b) rather than the date of § 87(2)(b) which was provided by § 87(2)(b) (Board Review 05, 06, and the Privileged Documents folder). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

The Internal Affairs Bureau (IAB) was consulted in order to identify officers who may have been aboard the ferry on which the incident occurred. Based upon the event number # § 87(2)(b) the responding unit 1FERRY, as determined from the event documentation, the Patrol Bureau Staten Island command, and the date and tour of occurrence, IAB identified a single officer, Police Officer Michael Bilbao, as assigned to the post in question.

In his statement at the CCRB, Police Officer Bilbao stated that, at the time of occurrence, he was on patrol at St. George Terminal in Staten Island (Board Review 09). The last ferry he rode on during his tour on the date of incident docked in Staten Island at approximately 1:30 a.m., after which time Police Officer Bilbao patrolled the St. George Terminal with Police Officer Alexander Deguzman until the end of his tour.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that Allegation A, B, C, D, and E be closed as officer(s) unidentified.

Allegation (F) Abuse of Authority: At 4 Whitehall Street in Manhattan, Police Officer Oswaldo Santiago threatened to arrest § 87(2)(b)

Allegation (G) Abuse of Authority: At 4 Whitehall Street in Manhattan, Police Officer Scott Giugliano threatened to arrest § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

In his verified statement, § 87(2)(b) said that, after he was forced off of the ferry, he was harassed by several employees of the ferry in the Whitehall Terminal (Board Review 01). Police Officer Santiago and Police Officer Giugliano were on patrol in the terminal. Over the course of thirty minutes, the ferry staff told the officers to arrest § 87(2)(b) numerous times. Police Officer Santiago and Police Officer Giugliano approached § 87(2)(b) and both repeatedly

told him that he could choose to either go to jail or to the hospital. Neither officer explained why § 87(2)(b) could be arrested.

Police Officer Santiago and Police Officer Giugliano were requested to appear at the CCRB for the incident date of January 31, 2018, as alleged by § 87(2)(b). Therefore, they did not review memo book entries for January 25, 2018 prior to their interviews.

Police Officer Santiago and Police Officer Giugliano stated that they did not recall the incident in question, even after they were shown a photograph of § 87(2)(b) taken at the CCRB and were provided with the alleged details of the occurrence (Board Review 03 and 04). Police Officer Santiago did not know if he or Police Officer Giugliano had, on any date, told § 87(2)(b) that he could go to jail or the hospital, while Police Officer Giugliano stated that neither he nor Police Officer Santiago had done so on any date.

§ 87(2)(g) and there were no witness statements or video recordings § 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that Allegation F and G be closed as unsubstantiated.

Allegation (H) Abuse of Authority: At 4 Whitehall Street in Manhattan, Police Officer Oswaldo Santiago forcibly removed § 87(2)(b) to the hospital.
Allegation (I) Abuse of Authority: At 4 Whitehall Street in Manhattan, Police Officer Scott Giugliano forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) was forcibly removed to the hospital. § 87(2)(g)

§ 87(2)(b) stated that, inside the ferry terminal, Police Officer Santiago and Police Officer Giugliano repeatedly told him they would remove him to the hospital (Board Review 01). PO Giugliano pulled him from a chair to the floor and handcuffed him. § 87(2)(b) repeatedly stated that he did not want to go to the hospital. Police Officers Santiago and Giugliano rode in an ambulance with § 87(2)(b) to § 87(2)(b). The officers departed the hospital after only a few minutes. They told § 87(2)(b) that he could choose whether or not to stay at the hospital, but that he could not return to Whitehall Terminal until 9:00 a.m. § 87(2)(b) believed the officers brought him to the hospital so that he would have a place to stay until the morning since it was winter and cold outside.

Police Officer Santiago and Police Officer Giugliano both stated that they did not remember this incident, but that they removed emotionally disturbed persons (EDPs) to the hospital from Whitehall Terminal multiple times per week (Board Review 03 and 04).

The memo book of Police Officer Santiago on January 25, 2018 notes that between 1:39 am and 4:35 a.m., an EDP was removed to the hospital from the Whitehall Terminal with the assistance of Emergency Medical Services (EMS) (Board Review 10). Police Officer Santiago escorted the individual in the ambulance. AID-§ 87(2)(b), completed by Police Officer Santiago at 4:00 am on January 25, 2018, states that § 87(2)(b) exhibited emotionally disturbed behavior on the ferry and in the ferry terminal (Board Review 05). § 87(2)(b) verbally threatened “harm” and spoke of harming himself. As a result, § 87(2)(b) was treated by EMS and transported to the hospital from the Whitehall Terminal.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

Patrol Guide Procedure 221-13 states that a person is considered to be emotionally disturbed, and therefore must be taken into protective custody, when he appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others (Board Review 11).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations H and I** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

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Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to four other CCRB complaints besides the present case and has been named as a victim in 33 allegations across two cases (Board Review 14).
 - § 87(2)(b)
 -
- Police Officer Giugliano has been a member of service for eight years and has been a subject of one other CCRB complaint and one allegation which was not substantiated.

§ 87(2)(g)
- Police Officer Santiago has been a member of service for 13 years and has been a subject of one other CCRB complaint and three allegations of which none were substantiated.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation due to claims of personal injury.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of August 10, 2018, § 87(2)(b) had not filed a Notice of Claim in regard to this incident (Board Review 16).

Squad No.: 12

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date